SL. No.1

NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH
COURT HALL NO: II

Special Bench

Hearing Through: VC and Physical (Hybrid) Mode

CORAM: SHRI. MOHAN PRASAD TIWARI– HON'BLE MEMBER (J)
CORAM: SHRI. SANJAY PURI - HON'BLE MEMBER (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, HYDERABAD BENCH, HELD ON 13.06.2025 at 12:00 PM

TRANSFER PETITION NO.	
COMPANY PETITION/APPLICATION NO.	**CA (CAA) No.24/230/2025**
NAME OF THE COMPANY	**MV Salts & Chemicals Pvt Ltd (Transferee Co.) and Priya Darshini Salt Works Pvt Ltd (Transferor Co.1) and S K Salts Pvt Ltd (Transferor Co.2)**
NAME OF THE PETITIONER(S)	
NAME OF THE RESPONDENT(S)	
UNDER SECTION	**230 of Companies, Act**

ORDER

Orders pronounced, recorded vide separate sheets. In the result, CA (CAA) No.24/230/2025 is allowed.

Sd/-
MEMBER (T)

Sd/-
MEMBER (J)

Apoorva

IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH, COURT - II

CA (CAA) No. 24/230/HDB/2025

[U/s 230 to 232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016]

IN THE MATTER OF SCHEME OF AMALGAMATION
OF
M/s. MV SALTS AND CHEMICALS PVT LTD
(TRANSFEREE COMPANY)
AND
M/s. PRIYA DARSHINI SALT WORKS PRIVATE LIMITED
(TRANSFEROR COMPANY No.1)
WITH
M/s. SK SALTS PVT LTD
(TRANSFEROR COMPANY No.2)

M/s. MV Salts and Chemicals Pvt Ltd
A Company incorporated under the Companies Act, 1956
And having its registered office at 6-2-1012,
TGV Mansion, Opp. Institute of Engineers Raj Bhavan Road,
Khairathabad, Hyderabad – 500 004, Telangana, India
Within the aforesaid jurisdiction

….Transferee Company

M/s. Priya Darshini Salt Works Private Limited
A Company incorporated under the Companies Act, 1956
And having its registered office at 6-2-1012,
TGV Mansion, Khairathabad, Hyderabad -500 004,
Telangana, India, within the aforesaid jurisdiction.

…. Transferor Company – 1

M/s. SK Salts Pvt Ltd
A Company incorporated under the Companies Act, 1956
And having its registered office at 6-2-1012,
TGV Mansion, Opp. Institute of Engineers Raj Bhavan Road,
Khairathabad, Hyderabad - 500 004,
Telangana, India, within the aforesaid jurisdiction.

…. Transferor Company – 2

Date of Order:13.06.2025

CORAM:
Sri Mohan Prasad Tiwari, Hon'ble Member (Judicial)
Sri Sanjay Puri, Hon'ble Member (Technical)

Counsel/Parties Present:
For the Applicants : Ms. Madhavilatha Lokireddy and Sumathi, Ld. Counsels.

[PER: BENCH]

ORDER

1. This is a Joint Application filed on behalf of the Applicants, M/s. Priya Darshini Salt Works Private Limited (Transferor Company-1) and M/s. SK Salts Pvt Ltd (Transferor Company-2) with M/s. MV Salts and Chemicals Pvt Ltd) (Transferee Company) under Sections 230 to 232 of the Companies Act, 2013, inter-alia seeking the following reliefs:

    a. Dispensing with the convening of meeting of the Equity Shareholders of the Applicant Companies in view of written consent given by all the shareholders of Applicant Company No.1 and Applicant Company No.2 and 99.99% of the shareholders of the Applicant No.3.

    b. That following necessary direction(s) may be given in case the Hon'ble NCLT does not dispense with the convening of the meeting of equity shareholders of the Applicant Companies:

        i. The method of convening, holding and conducting the said meeting of equity shareholders of all the Applicant Companies.

        ii. Fixing the date and time for all meetings be held at the registered office of the respective Transferor Companies and

Transferee Company or any other places as deemed fit and proper;

iii. Appointing a director or a Company Secretary or any other person as a Chairperson the case may be, and fixing the terms of their appointment.

iv. Fixing the quorum and the procedure to be followed at the meeting or meetings, including voting in person or by Proxy/Authorised Representative at the meeting.

v. Joint Advertisement/publication of Notice of meeting or meetings in Business Standard (Hyderabad) in English Edition and in Nava Telangana (Telugu) Edition or any other newspaper as deemed fit and proper for all the Applicant Companies;

vi. Dispatch of Notice of the meeting or meetings by speed post and /or courier and/or hand delivery and/or electronic means;

vii. Chairperson of the respective meeting or meetings may be directed to file report within 15 days' from the date of meeting or meetings and copies of the said report be also delivered to the Applicant companies;

c. Dispensing with convening of meeting of the Unsecured Creditors of the Applicant Company Nos.2 and 3, in view of written consent given by 100% of the unsecured Creditors of both the Companies.

d. That following necessary direction(s) may be given for convening of the meeting of Unsecured Creditors of the Applicant Company No.1, MVSCPL.

i. The method of convening, holding and conducting the said meeting of unsecured creditors of the Transferee Company.

ii. Fixing the date and time for meeting be held at the registered office of the Transferee Company or any other places as deemed fit and proper;

iii. Appointing a director or a Company Secretary or any other person as a Chairperson, as the case may be, and fixing the terms of their appointment.

iv. Fixing the quorum and the procedure to be followed at the meeting or meetings, including voting in person or by Proxy/Authorised Representative at the meeting.

v. Advertisement/publication of Notice of Meeting in the Business Standard (Hyderabad) in English Edition and in the Nava Telangana (Telugu) Edition or any other newspaper as deemed fit and proper for the Transferee Company.

vi. Dispatch of Notice of the meeting by speed post and/or courier and/or hand delivery and/or electronic means;

vii. Chairperson of the meeting may be directed to file report within 15 days' from the date of meeting and copy of the said report be also delivered to the Transferee Company;

e. Notice be given to sectoral regulators or authorities as required under Sub-Section (5) of Section 230;

f. That leave be granted to file joint application under sub-rule (2) of rule 3 of the Rules by the Applicant companies to sanction the proposed Scheme of Amalgamation within 4 weeks from the date when Chairperson files its reports;

2. The Registered Offices of the Applicant Companies are situated in the State of Telangana.

3. The Brief facts of the case:

I. <u>Details of Incorporation of Transferee Company-1</u>:

M/s. MV SALTS AND CHEMICALS PVT LTD ("MVSCPL") (Applicant No.1 Company/Transferee Company) having Permanent Account Number AABCM5527G and Corporate Identity Number U24110TG1979PTC002417 was incorporated on 28.02.1979.

II. <u>Main Objects of the Transferee Company-1</u>:

The main objects of the Transferee Company-1 are fully set out in the Memorandum and Articles of Association.

(A copy of the Memorandum and Articles of Association of the Transferee Company is filed as Letter A-1 at Page Nos. 61 to 82 of the Application).

III. The registered office of MVSCPL is situated at 6-2-1012, TGV Mansion, Opp. Institute of Engineers Raj Bhavan Road, Khairathabad, Hyderabad- 500004, Telangana, India.

IV. <u>Capital Structure of the Transferee Company-1</u>:

The Authorized Share Capital and the Issued, Subscribed and Paid-up capital of the Transferee Company as on 31st March 2024 was as under:

Particulars	Amount in Rs.
Authorized Share Capital 65,00,000 equity shares of Rs.10/- each	6,50,00,000/-
Total	**6,50,00,000/-**
Issued, Subscribed and Paid-up Share Capital 53,78,357 equity shares of Rs.10/- each fully paid	5,37,83,570/-
Total	**5,37,83,570/-**

V. The following summary extracted from the annual accounts of MVSCPL for the year ended 31st March, 2024 indicates the financial position of "MVSCPL" as follows:

i. MVSCPL has not issued or agreed to issue any debentures.

ii. The Auditor's Report on the accounts for the Financial Year ended 31st March, 2024 does not contain any qualification, reservation or adverse remark.

iii. The Financial position of MVSCPL as on 31st March, 2024 is as follows:

Particulars	**Amount (Rs.)**
Shareholders Fund	
a) Share Capital	5,37,83,570.00
b) Reserves & Surplus	21,32,50,000.00
Non-Current Liabilities	
a) Long Term Borrowings	0.00
b) Deferred Tax Liability	0.00
Current Liabilities	
a) Short Term borrowings	0.00
b) Trade Payables	0.00
c) Other Current Liabilities	1,92,58,000.00
d) Short Term provisions	50,98,000.00
Total	**29,13,89,570.00**
Non-Current Assets	
a) Property, Plant & Equipment	3,39,000.00
b) Non-current Investments	28,57,56,000.00
c) Deferred Tax Assets (Net)	58,000.00
d) Long Term Loans Advances	1,05,000.00
e) Other Non-current Assets	0.00
Current Assets	
a) Inventory	7,35,000.00
b) Trade Receivables	0.00
c) Cash & cash Equivalents	7,07,000.00
d) Short Term loans and Advances	36,50,000.00
e) Other Current Assets	39,000.00
Total	**29,13,89,570.00**

(A Copy of the last Audited Balance Sheet of MVSCPL along with Auditors Report and Director's Report for the year ended on 31-03-2024 is annexed as A-2 at Page Nos. 83 to 118 of the Application and unaudited financial statements for the period ended on 28-02-2025 is annexed as Annexure A-3 at Page Nos. 119-120 of the Application).

VI. Details of Incorporation of Transferor Company-1:

M/s. Priya Darshini Salt Works Private Limited (PSWPL or the Transferor Company-1) having Permanent Account Number AADC-P8433C and Corporate Identity Number U14220TG1975PTC150742 was incorporated on 19th November, 1975.

VII. Main Objects of the Transferor Company-1:

The main objects of the Transferor Company-1 are fully set out in the Memorandum and Articles of Association.

(A copy of the Memorandum and Articles of Association of the Transferor Company-1 is filed as Annexure B-1 at Page Nos. 121 to 152 of the Application).

VIII. The registered office of PSWPL is situated at 6-2-1012, TGV Mansion, Khairathabad, Hyderabad- 500004, Telangana, India.

IX. Capital Structure of the Transferor Company-1:

The authorized Share Capital and the Issued, Subscribed and Paid-up capital of the Transferee Company as on 31st March 2024 was as under:

Particulars	Amount in Rs.
Authorized Share Capital 15,000 equity shares of Rs.100/- each	15,00,000/-
Total	**15,00,000/-**
Issued, Subscribed and Paid-up Share Capital 8,875 equity shares of Rs.100/- each fully paid	8,87,500/-
Total	**8,87,500/-**

X. The following summary extracted from the annual accounts of PSWPL for the year ended 31st March, 2024 indicates the financial position of "PSWPL" as follows:

i. PSWPL has not issued or agreed to issue any debentures.

ii. The Auditor's Report on the accounts for the Financial Year ended 31st March, 2024 does not contain any qualification, reservation or adverse remark.

iii. The Financial position of PSWPL as on 31st March, 2024 is as follows:

Particulars	**Amount (Rs.)**
Shareholders Fund	
a) Share Capital	8,87,500.00
b) Reserves & Surplus	10,67,552.00
Non-Current Liabilities	
a) Deferred Tax Liability	4,08,286.00
Current Liabilities	
a) Trade Payables	1,42,22,102.00
b) Other Current Liabilities	20,74,438.00
c) Short Term provisions	1,90,780.00
Total	**1,88,50,658.00**
Non-Current Assets	
a) Property, Plant & Equipment	63,29,677.00
b) Non-current Investments	27,49,950.00
c) Long Term Loans & Advances	35,45,554.00
Current Assets	
a) Inventories	52,51,481.00
b) Trade Receivables	8,54,766.00
c) Cash & cash Equivalents	18,961.00
d) Short Term loans and Advances	1,00,269.00
Total	**1,88,50,658.00**

(A Copy of the Audited Balance Sheet of PSWPL along with Auditors Report and Director's Report for the year ended on 31-03-2024 is annexed B-2 at Page Nos. 153 to 188 of the Application and unaudited financial statements for the period ended on 28-02-2025 is annexed as Annexure B-3 at page nos.189-190 of the Application).

XI. Details of Incorporation of Transferor Company-2:

M/s. SK Salts Pvt Limited (SKSPL or the Transferor Company-2) having Permanent Account Number AACCS4024P and Corporate Identity Number U05005TG1981PTC003083 was incorporated on 26.06.1981.

XII. Main Objects of the Transferor Company-2:

The main objects of the Transferor Company-2 are fully set out in the Memorandum and Articles of Association.

(A copy of the Memorandum and Articles of Association of the Transferor Company-2 is filed as Annexure C-1 at Page Nos. 191 to 216 of the Application).

XIII. The registered office of SKSPL is situated at 6-2-1012, TGV Mansion, Opp. Institute of Engineers Raj Bhavan Road, Khairathabad, Hyderabad- 500004, Telangana, India.

XIV. Capital Structure of the Transferor Company-2:

The authorized Share Capital and the Issued, Subscribed and Paid-up capital of the Transferee Company as on 31st March 2024 was as under:

Particulars	Amount in Rs.
Authorized Share Capital 10,00,000 equity shares of Rs.10/- each	1,00,00,000/-
Total	**1,00,00,000/-**
Issued, Subscribed and Paid-up Share Capital 9,00,800 equity shares of Rs.10/- each fully paid	90,08,000/-
Total	**90,08,000/-**

XV. The following summary extracted from the annual accounts of SKSPL for the year ended 31st March, 2024 indicates the financial position of "SKSPL" as follows:

i. SKSPL has not issued or agreed to issue any debentures.

ii. The Auditor's Report on the accounts for the Financial Year ended 31st March, 2024 does not contain any qualification, reservation or adverse remark.

iii. The Financial position of SKSPL as on 31st March, 2024 is as follows:

Particulars	Amount (Rs.)
Shareholders Fund	
a) Share Capital	90,08,000.00
b) Reserves & Surplus	1,70,73,000.00
Current Liabilities	
a) Trade Payables	0.00
b) Other Current Liabilities	60,000.00
c) Short Term provisions	0.00
Total	**2,61,41,000.00**
Non-Current Assets	
a) Non-current Investments	**2,61,04,000.00**
Current Assets	
a) Cash & Bank Balances	0.00
b) Short Term Loans and Advances	37,000.00
Total	**2,61,41,000.00**

(A Copy of the Audited Balance Sheet of SKSPL along with Auditors Report and Director's Report for the year ended on 31-03-2024 is annexed C-2 at Page Nos. 217 to 245 of the Application and unaudited financial statements for the period ended on 28-02-2025 is annexed as Annexure C-3 at page nos.246-247 of the Application).

4. The Terms and conditions of the amalgamation are fully stated in the said Scheme of Amalgamation, salient features of which are stated as follows:

Part II: Transfer and Vesting undertaking of Transferor Companies to and in the Transferee Company; Upon the coming into effect of this Scheme and with effect from the Appointed date, the undertaking of the Transferor Companies shall, pursuant to the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, be and stand transferred to and

vested in or be deemed to have been transferred to and vested in the Transferee Company, as a going concern without any further act, instrument, deed, matter or thing to be done, made, executed so as to become, as and from the Appointed date, the undertaking of the Transferee Company by virtue of and in the manner provided in this Scheme.

Part III: Issue of equity shares by Transferee Company and cancellation of shares; In case the Transferor Companies make any allotment of shares between the Appointed date and the Effective date, the said allottees shall also upon the Scheme becoming the Scheme becoming operative, in consideration of the transfer and vesting of Transferor Companies in Transferee Company in terms of this Scheme, shall without any further application or deed by issued and allotted equity shares in Transferee Company, credited as fully paid-up in the same ratio as are allotted to the other equity shareholders of the Transferor Companies. In case of any shareholder's holding in the transferor Companies is such that the shareholder becomes entitled to a fraction of an equity share of the Transferee Company, then the shareholder shall be paid cash in lieu of such fractional entitlement.

Part IV: **Accounting treatment**: All the assets and liabilities of the Transferor Companies shall be transferred at their Book values at the close of the business on the Appointed date. The Reserve and Surplus, if any, and debit balance in the Profit and Loss account shall be transferred to Transferee Company in the same manner in which it appears in the books of Transferor Companies as on the appointed date.

Part V: Dissolution of Transferor Companies: Upon the Scheme being sanctioned and an order being made by the Tribunal under Section 232 of the Act, the Transferor Companies shall stand dissolved without winding up on the Effective date.

A copy of the Scheme of Amalgamation is annexed as Annexure-D at Page Nos. 248 to 274 of the Application.

5. **The Rationale for the proposed Scheme:**

The reasons that have necessitated and/or justified the said Scheme of Amalgamation are, inter alia as follows:

a) The scheme envisages amalgamation of Transferor Companies into Transferee Company, resulting in consolidation of the business into one entity and strengthening the position of the merged entity, by enabling it to harness and optimize the synergies of the applicant companies. Accordingly it would be in the best interests of shareholders of the Transferor Companies and Transferee Company.

b) Since the Applicant Companies namely, MVSCPL, PSWPL and SKSPL are under the same management group, it would be beneficial for the Transferor Companies to be merged with the Transferee Company.

c) Further, Amalgamation of these Companies will lead to better administrative control and will be convenient for the company to operate as well. The Transferee Company will offer a strong financial structure and facilitate resource mobilization and achieve better cash flows. The synergies created by the amalgamation would increase the operational efficiency and integrate business functions.

d) The amalgamation will provide an opportunity to leverage combined assets and build a stronger sustainable business. Specifically, the merger will enable optimal utilization of existing resources and provide an opportunity to fully leverage assets, capabilities, experience and infrastructure of the companies. The amalgamation will also reduce the managerial overlaps involved in operating different entities, case and increase operational and management efficiency, integrate business functions.

e) Improved organisational capability and leadership arising from the pooling of human capital that has diverse skills, talent and vast experience to compete successfully in an increasingly competitive industry. The amalgamation of the Transferor Companies with the Transferee Company would reduce overhead costs.

6. In view of the aforesaid, the Board of Directors of all the Applicant Companies have considered and proposed the amalgamation of the entire undertaking and business of PSWPL and SKSPL with MVSCPL in order to benefit the stakeholders of all the Companies concerned. Accordingly, the Board of Directors of all the Companies have formulated this Scheme of Amalgamation for the transfer and vesting of the entire undertaking and business of "PSWPL" & "SKSPL" with "MVSCPL" pursuant to the provisions of Section 230 to Section 232 and other relevant provisions of the Act.

7. **Details of Board Meeting of Applicant Companies:**

a. The Board of Directors of the Applicant Companies have, at their respective meetings held on 18.03.2025 by resolutions passed unanimously, approved Scheme of Amalgamation of PSWPL and SKSPL (hereinafter collectively referred to as "Transferor Companies) with MVSCPL (hereinafter referred to as the "Transferee Company") whereby and where under the entire undertaking of the Transferor Companies with all assets and liabilities relating thereto as a going concern is proposed to be transferred to and vested in Transferee Company. We shall crave reference to copies of the minutes of the said meetings at the hearing of this application, if necessary.

(Certified copies of the Board Resolution of all the Applicant Companies approving the Scheme of Amalgamation are filed as Annexures-E at Page Nos.275-283 of the Application.)

b. The Assets of the Applicant Companies are sufficient to meet all their liabilities and the said scheme will not adversely affect the rights of any of the creditors or any of the Applicant Companies in any manner whatsoever. The Applicant Companies have made due provisions for payment of all liabilities as and when the same will fall due. In this connection, we crave leave to refer to the accounts book and records of the Applicant Companies at the time of hearing, if necessary.

c. The valuation of the shares of the Applicant Companies, based on which the share entitlement ratio has been arrived at, after careful

consideration and after taking into account all relevant facts has been carried out and approved by Ms. Bidisha Achari, an IBBI Registered Valuer and is bona fide and reasonable.

(**Copy of the valuation report is annexed as Annexure F at page Nos. 284-307 of the Application).**

8. **Shareholders of all the Applicant Companies:**

i. The Applicant Companies namely, MVSCPL, PSWPL and SKSPL have 12, 6 and 4 Shareholders respectively. The List of Shareholders of all the Applicant Companies as on 18th March, 2025 duly certified by the Statutory Auditor along with their individual affidavits.

(A Copy of the Statutory Auditor along with their individual affidavits are annexed as Annexure G-1, G-2 & G-3 at page Nos.308 to 340 of the Application and the class of Shareholders of all the Applicant Companies is annexed as Annexure H-1, H-2 & H-3 at page Nos. 341 to 343 of the Application).

ii. In as much as all the shareholders of Applicant Company No.1 have duly consented in writing by way of an affidavit and have agreed to the terms and conditions of the proposed scheme, it is therefore submitted that the requirement of convening and holding a meeting to ascertain the wishes of the shareholders of the Applicant No.1 be dispensed with.

iii. The Applicant No.2 has 6 (Six) Shareholders out of which 2 (Two) shareholders have passed away before the filing of this present application. Although correspondences were sent by the Company, none have come forward to claim those shares and provide their no objection to the Scheme. Inasmuch as all the other shareholders of Applicant Company No.2 have duly consented in writing by way of an affidavit and have agreed to the terms and conditions of the proposed scheme, it is therefore submitted that the requirement of convening and holding a meeting to ascertain the wishes of the shareholders of the Applicant No.2 be dispensed with.

iv. The Applicant No.3 has 4 (Four) Shareholders, out of which 3 shareholders holding 99.99% of the equity shares have consented to the Scheme of Amalgamation by way of individual affidavit.

The remaining shareholder, APSIDC, holding 100 shares constituting 0.01% of the shareholding have not responded to the correspondences sent by the Applicant Company. In as much as all the other shareholders of Applicant Company No.3 have duly consented in writing by way of an affidavit and have agreed to the terms and conditions of the proposed scheme, it is therefore submitted that the requirement of convening and holding a meeting to ascertain the wishes of the shareholders of the Applicant No.3 be dispensed with.

v. No useful purpose will be served in convening or holding meeting of shareholders of the Applicant Companies as they have approved the said proposed scheme in writing.

9. It is further submitted that if this Hon'ble National Company Law Tribunal doesn't dispenses with the convening and holding of the meetings of the equity shareholders, directions may be given for holding separate meeting(s) of the equity shareholders of the Applicant Companies at their registered addresses or such other places as this Hon'ble National Company Law Tribunal may deem fit and proper for the purpose of considering, and if thought fit, approving scheme of amalgamation, with or without modification and direction be given to serve the notices of the shareholders of the applicant companies under speed post, registered post, courier or hand delivery or electronic means and direction be given for Joint publication in the newspaper for convening and holding meeting of the shareholders of the respective companies aforesaid.

10. **Details of Secured Creditors:**
As on 18th March 2025 Applicant Companies do not have any Secured Creditors.

11. **Details of Unsecured Creditors:**
Transferee Company: As on 18th March, 2025 the Transferee Company, MVSCPL has 2 unsecured Creditors to whom a sum of Rs.2,31,30,371/- (Rupees Two Crores Thirty One Lakhs Thirty Thousand Three Hundred and Seventy One only) is outstanding and due.

(**A list of creditors of Applicant No.1 duly certified by the Statutory Auditors is Annexed as Annexure K-1 at page Nos.344 to 345A of the Application, a Certificate from the Statutory Auditor specifying the class of Creditors of the**

Transferee Company is Annexed as Annexure K-2 at page No.346 of the Application).

Transferor Company No.1: As on 18th March, 2025 the Applicant No. 2 has 9 Unsecured Creditors to whom a sum of Rs. 1,81,21,910.92/- (Rupees One Crore Eighty One Lakhs Twenty One Thousand Nine Hundred and Ten only) is outstanding and due.

(**A list of creditors of Applicant No.2 duly certified by the Statutory Auditors is Annexed as Annexure L-1 at page Nos. 347 to 360 of the Application, a Certificate from the Statutory Auditor specifying the class of Creditors of the Transferee Company is Annexed as Annexure L-2 at page No.361 of the Application)**

Transferor Company No.2: As on 18th March, 2025 the Applicant No. 3 has 1 Unsecured Creditor to whom a sum of Rs. 1,00,000/- (Rupees One Lakh only) is outstanding and due.

(**A list of creditors Applicant No.3 duly certified by the Statutory Auditors is Annexed as Annexure M-1 at page Nos.362 to 364A of the Application, a Certificate from the Statutory Auditor specifying the class of Creditors of the Transferee Company is Annexed as Annexure M-2 at page No.364B of the Application).**

12. Since all the Unsecured Creditors as on 18th March, 2025 of the Transferor Company Nos.1 and 2 have duly confirmed and agreed to the terms and conditions of the said scheme of amalgamation, it is , therefore submitted that the requirement of convening and holding a meeting ascertain the wishes of the unsecured Creditor of the Transferor Company No.1 and Transferor Company No.2 be dispensed with under Section 230(9) of the Companies Act, 2013.

13. **<u>Accounting treatment and Certificate by Auditors:</u>**
The Accounting treatment, proposed in the Scheme of Amalgamation in Clause 15 is in conformity with the Accounting Standards prescribed under Section 133 of the Companies Act. Certificate under Section 230 (7) confirming the same is provided by M/s S.T. Mohite & Co., Chartered Accountants and M. Gopal & Co. Chartered Accountants.

(A copy of the certificate issued by the Statutory Auditors is filed as Annexure-N at Page Nos.364C-366 of the Application).

That the proposed amalgamation does not fall under the jurisdiction of the regulation by the Competition Commission of India (CCI) or the

Reserve Bank of India ('RBI') and therefore there is no requirements of serving notice to CCI or RBI for the proposed amalgamation. An affidavit with respect to applicability of sectoral regulators to the Applicant Companies is annexed as **Annexure-O at page Nos.367 to 375 of the Application.**

14. **Pending Proceedings/Investigations:**
There are no proceedings/investigations pending under Sections 210 to 229 of Chapter XIV of the Companies Act, 2013 or under the corresponding provisions of the Companies Act, 1956. No winding up petitions have been admitted or filed against Applicant Companies.

15. **Material Interest of Directors:**
None of the Directors of any of the Applicant Companies have any material interest in the said scheme of amalgamation except as Directors and Shareholders in general and the extent of which will appear from the Register of Director's Shareholding maintained by the respective Applicant Companies.

ORDER

16. We have heard the Learned Counsel for the Applicant Companies perused the material on record.

17. We order dispensing with the convening of meeting of the Equity Shareholders of the Applicant Companies in view of written consent given by all the shareholders of Applicant Company No.1 and Applicant No.2 and 99.99% of the Shareholders of the Applicant No.3.

18. We order dispensing with the convening of meeting of the Unsecured Creditors of the Applicant Company Nos. 2 and 3 in view of written consent given by 100% of the unsecured Creditors of the both the Companies.

19. We order convening of a meeting of the Unsecured Creditors of the Applicant Company No.1/Transferee Company to take approval of the Scheme.

20. We appoint **Mr Syed Yaqoob Sajjad, Advocate** having email: **syedyaqoobsajjad@yahoo.com,** Mobile Number: **9032804088** as **Chairperson** and **Mr Vinay Babu Gade**, **PCS** having email: **cs.gvinay@gmail.com**, Mobile number: **9160999526** as **Scrutinizer** for convening the meetings and direct as follows:

a) Meeting of the Unsecured Creditors of the Applicant Company No.1/Transferee Company may be convened at the registered office of the Company or at any other suitable place within the local limits of Hyderabad and Secunderabad as deemed fit, through Video Conference (VC)/Other Audio-Visual Means (OAVM) to take approval for the Scheme via e-voting.

b) Notices of the said meeting may be sent through e-mail or by ordinary/speed post or courier to the Unsecured Creditors of the Applicant Company No.1/Transferee Company.

c) The Advertisement/publication of Notice of meting may be published in Business Standard (Hyderabad) in English Edition and in Nava Telangana (Telugu) Edition or any other newspaper as deemed fit and proper for all the Applicant Companies.

d) The Equity Shareholders be permitted to exercise their votes at the said meeting through Video Conference (VC)/Other Audio-Visual Means (OAVM) via e-voting.

e) The Report along with the Compliance Affidavit of the Chairperson of the meeting may be submitted to this Tribunal within 10 days from the date of the said meeting.

f) The Chairperson shall have all powers under the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016 in relation to the conduct of the meetings (s) including, deciding the procedural questions that may arise before or at any adjournment thereof or any other matter including an amendment to the Scheme or resolution, if any, proposed at the meeting by any person (s).

g) The Fee fixed for Chairperson is Rs.1,00,000/- and Rs.50,000/- for Scrutinizer respectively for the above meeting.

Accordingly, the Company Application **C.A. (CAA) No.24/230/HDB/2025** is allowed and disposed of.

Sd/-
SANJAY PURI
MEMBER (TECHNICAL)

Sd/-
MOHAN PRASAD TIWARI
MEMBER (JUDICIAL)

Vamsi